

КОММЕНТАРИЙ

Почему закон о защите студенческого спорта заслуживает принятия, несмотря на все недостатки



**Американский футбол
Межсезонье**

«Большой куш» Университета штата Огайо

Конференции с участием 19

чтобы болельщики могли год за годом поддерживать свои любимые команды. Исайя Васкес / Getty Images



By **Jerry Brewer**

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ответит вам взаимностью. Это учреждение — сборище враждующих группировок, преследующих собственные интересы. В этой среде злодеями стали университеты, спонсоры, корпорации, судьи, юристы, агенты, спортсмены и их семьи, и никто из них не проявляет должного беспокойства по поводу ущерба, который они наносят рядовым болельщикам.

Из-за этого в фандоме поселилась неприятная усталость. Мало что работает так, как раньше. Ты проводишь сезон, наблюдая за развитием состава — за свирепым молодым лайнбекером, который переходит от чрезмерной активности к сохранению целостности защиты, за не по годам развитым квотербеком, который больше не заикливается на первом прочтении, — а к следующему августу половина команды уходит, проданная тому, кто больше заплатит. Ты больше не можешь наблюдать за становлением команды. Вы вынуждены признать, что все можно купить, в том числе и вашу преданность.

Эта усталость — самое веское и честное обоснование необходимости принятия Закона о защите студенческого спорта. Это амбициозный, но несовершенный законопроект Сената. И он абсолютно необходим. Он не решит всех проблем студенческого спорта, потому что, к сожалению, это невозможно даже при поддержке обеих партий. Он не возлагает вину и не предусматривает наказания для всех сторон, из-за которых возник этот хаос. Но он стоит достаточно высоко над этим хаосом, чтобы

Впервые в письменном виде стандартизировано то, что в течение пяти изнурительных лет создавалось на ходу и оспаривалось в суде: основные правила выплаты компенсаций за использование имени, изображения и сходства, которые не могут быть отменены по прихоти суда. Кроме того, в документе установлен реальный лимит на распределение доходов, а не просто намек на него. С тех пор как рухнула система эксплуатации студентов-спортсменов в NCAA, не было никаких обязательных к исполнению национальных правил. Есть вероятность, что этот законопроект станет законом до конца лета, и если это произойдет, студенческий спорт обретет определенную стабильность, что должно пойти на пользу как основным видам спорта, приносящим доход, так и некоммерческим командам, в которых спортсмены действительно являются студентами.

Это было бы гораздо лучше, чем нынешняя ситуация, когда все в спорте действуют по принципу «Не ненавидь игрока, ненавидь игру». Цинизм достиг небывалых масштабов. Никто не берет на себя ответственность. Все преследуют свои интересы. Тренеры презируют атмосферу, но не настолько, чтобы большинство из них отказались от многомиллионных контрактов. Спортсмены не столько участвуют в турне по колледжам, сколько выискивают в контрактных соглашениях пункты о вознаграждении. Президенты и спортивные директора служат людям, которые гонятся за деньгами, без притворства. Сторонников устаревшего студенческого любительского спорта высмеивают за их наивность.

Являются ли спортивные контракты в колледжах настоящими контрактами?

Тифо Спортс

It took 171 pages for lawmakers to reckon with all the problems and provide reasonable solutions that senators would actually support. There's still a chance to squeeze in a Senate vote before a monthlong recess at the end of this week. If that happens, it moves to the House of Representatives for another round of scrutiny. If the bill doesn't lose momentum during election season, if it doesn't lose its meaning after more tweaks, President Donald Trump is expected to sign it into law.

WHAT YOU SHOULD READ NEXT



What's actually in the Senate bill that's supposed to stop the madness in college sports?

Hurdles remain in the House of Representatives after the Senate recess, but the possibility of passing something is closer than ever.

For such a polarizing time in American history, the process has seemed almost quaint. Senators negotiated, at length, with people they don't fully trust, working toward an outcome that nobody can claim as their own. Ted Cruz (R-Texas) and Maria Cantwell (D-Wash.), who don't agree on much else, spent months leading an

have vastly different views. This bill is neither a partisan trophy nor a capitulation to the most powerful forces in college football.

The authors have taken difficult steps in a genuine attempt to look at what college sports have become and take a stance while satisfying as many parties as possible. The Senate Commerce Committee lists current student-athletes among the bill's supporters, in addition to the NFL, MLB, NBA, various coaches associations and the players associations for the NFL and NBA, which are predisposed to distrusting management. It does not make the bill infallible, but it means something. It shows people aren't so cynical that they'd rather let chaos reign.

WHAT YOU SHOULD READ NEXT



Big Ten, SEC finally green-light college sports bill, teeing up historic trip to Senate floor

With the Big Ten and SEC now on board, the bill has a chance of getting to the Senate floor next week for a vote.

Still, there is reason to believe lawmakers could've done a better job seeking stronger student-athlete involvement. Some of the loudest organized athlete voices — Athletes.org, the National College Players Association — remain the sharpest critics. Their most persuasive complaint is that the antitrust exemption sitting at

Supreme Court, which reshaped the entire landscape. The courts haven't stemmed the NIL free-for-all, and the legal system also gave athletes freedom of movement through transfers. The NCAA's rigidity and profiteering from athlete exploitation put it in a bind, and once its sins were dragged into a courtroom, the holes in its rationale became embarrassingly clear. Fortifying an antitrust exemption for college sports is key to establishing true rules, but it also disarms the athletes who keep winning in court. Making a clear-eyed endorsement of this bill requires grappling with that conflict.

Predictably, the bill stops short of making a college athlete a full-fledged university employee. It's an issue that would destroy the NCAA's entire financial model, and it's one that no coalition this fragile was ever going to resolve. That's an existential fight bound to outlast a bill that only renovated an old system.

But look at what those 171 pages actually accomplish. Uniform NIL rights, so a player's earnings don't depend on which state line he happened to be recruited across. A revenue-sharing cap that adjusts for inflation, so it doesn't age into the same joke every number before it became. One protected transfer, not an auction every December. Agents' fees capped at 5 percent, so that young athletes aren't so easily fleeced. Medical coverage and injury protections that exist by mandate, not because a compliance office felt generous.

These are among the most important policies that make the bill a worthy candidate to become a law. Provided the text can stave off augmentation from bad-faith politicians trying to fight culture wars, the clarity in the Protect College Sports Act

repairs college athletics. All of it is better than a status quo that results in finger-pointing and vacuums that opportunists fill without remorse.



Florida State fans perform the chop during the Seminoles' game against Alabama last season at Doak Campbell Stadium in Tallahassee, Fla. Chris Leduc / Icon Sportswire via Getty Images

Can you imagine staying exactly where we are for much longer? Do you want another winter and spring of collectives bidding against one another for a sophomore who hasn't started a game because, well, there's nothing to stop them? Another year of 50 states going with 50 conflicting NIL statutes, each one written to protect its local teams? Another round of lawsuits that strips away what's left of actual enforcement in college sports?

Continue down this road, and the long-feared super league likely stops being a hypothetical, and in that world, women's and Olympic programs become even less prioritized in the chase for more football television money.

Rules, [even ones we resist](#), sustain games. Consistency fuels habits. Parents pass down favorite teams to their children because the structure of these games holds and enables new fanatics to grow into the same rivalries, heartbreaks and triumphs that the previous generation taught them. You cannot pass down [a moving target](#).

It's not commanding a return to an exploitative past. It's trying to hit the present in stride, providing just enough structure for the fans who want to follow their teams again — like, really follow them, season after season — without needing a spreadsheet, or a lawyer to translate what's happening, or an unusually high tolerance for grief.

This bill won't make college sports lovable again by August. But it might, finally, stop the sport from breaking your heart on purpose.

Jerry Brewer is a senior columnist at The Athletic. He has been a prominent voice across the national sports landscape for more than two decades, including stops at The Philadelphia Inquirer, Orlando Sentinel, Louisville Courier-Journal, Seattle Times and Washington Post. He was a 2025 Pulitzer Prize finalist in commentary.

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